

For Sole Source - FAR Part 13.501*

(*Format follows FAR 6.303-2, but modified to reflect FAR subpart 13.5 procedures)

1. **Contracting Activity:** U.S. Army Contracting Command - New Jersey

2. **Description of Action:** U.S. Army Combat Capabilities Development Command - Armaments Center (DEVCOM-AC) requests approval of a Justification for a new one-year, firm-fixed price (FFP) contract with DS Government Solutions, 175 Wyman Street, Waltham, MA 02451-1223. The Government projects award in February 2026 (FYQ1). Research, Development, Technology, and Engineering (RDT&E) funds will be used to issue a Purchase Order.

3. **Description of Supplies/Services:** This requirement is for the procurement of Modeling and Simulation (M&S) ABAQUS (SIMULIA) annual software licenses to include all software updates, bug fixes, technical support, and training on ABAQUS (SIMULIA) software products currently in use at DEVCOM-AC. The following are the annual software licenses and quantities to be acquired under this anticipated effort:

Product List			
Project Title: Abaqus Software Subscription Licenses plus Abaqus Maintenance Enhancement & Support (MES Software and Software License Subscription)			
Description	License Type*	Part Number	QTY
Conventional License (Maintenance)			
SIMULIA Abaqus/CAE Analysis Pack	ALC	QAP	2
SIMULIA Abaqus Analysis Pack Additional Server	ALC	Q3B	1
SIMULIA Abaqus Analysis Tokens	ALC	QAT	612
SIMULIA Abaqus/CAE	ALC	QAE	33
SIMULIA Abaqus/Viewer	ALC	QVW	3
SIMULIA Abaqus/CAE Associative Interface for Pro/ENGINEER	ALC	QPI	2
Extended License (Maintenance)			
SIMULIA Abaqus Extended Token Pack	ALC	QXP	1
SIMULIA Abaqus Extended Tokens	ALC	QXT	134
SIMULIA Abaqus/CAE Extended	ALC	QAX	10
SIMULIA Composites Modeler for Abaqus/CAE	ALC	QCM	2
SIMULIA fe-safe	ALC	QFS	1
XFlow Standard 32	ALC	XFD-32	1
XFlow Premium 64	ALC	XFD-64	1

(Source Selection Information - See FAR 2.101 and 3.104-4)

<i>Product List continued</i>			
Add on Products (Lease)			
SIMULIA Verity Module in fe-safe	YLC	QF8	1
SIMULIA Abaqus/CAE Analysis Pack	YLC	QAP	3
SIMULIA Abaqus Analysis Tokens	YLC	QAT	115
Additive Manufacturing 3DEXPERIENCE (Maintenance)			
Simulation Foundation	ALC	SEI	2
Additive Manufacturing Programmer	ALC	AMP	2
Additive Manufacturing Programmer	ALC	AMP	2
Function Driven Generative Designer	ALC	GDE	2
Business & Industry Innovation	ALC	PCS	2
Digital Twin 3DEXPERIENCE (Lease)			
Business & Industry Innovation	YLC	PCS	5
Simulation Asset Management	YLC	ASG	5
Simulation Process Method Developer	YLC	PES	5
Results Data Analyst	YLC	RIW	5
Simulation Token Pack	YLC	SET	5
Simulation Process & Optimization	YLC	SPI	5
Training Class (Quantity is Days)			6
Engineering Support (Quantity in Hours)			160
Wave6 PowerSession	YLC	W6P	2
Wave6 Session	YLC	W6S	2
SIMULIA fe-safe	YLC	QFS	2
SIMULIA fe-safe/Rotate	YLC	QF6	2
SIMULIA fe-safe/Composites	YLC	QF7	2
SIMULIA Verity Module in fe-safe	YLC	QF8	2

**License Type: Annual License (ALC), Yearly License (YLC)*

The period of performance will be twelve months. The total contract price will be

4. Authority Cited: 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items.

5. Reason for Authority Cited: There continues to be ongoing significant growth in computational analyses, driven by the necessity to meet unforeseen program milestone schedules. To address DEVCOM AC's requirements, which include support for
(Source Selection Information - See FAR 2.101 and 3.104-4)

[REDACTED]
programs and other high priority DEVCOM-AC Science & Technology projects, the acquisition of this software and support is a necessity. This software enhances DEVCOM-AC's capability to perform advanced finite element analysis, which is

[REDACTED] of the Army's projects. The requirement for ABACUS (SIMULIA) fits seamlessly into the [REDACTED]

[REDACTED]. DEVCOM-AC is directed to prioritize several [REDACTED] under the [REDACTED] umbrellas with [REDACTED]

[REDACTED] which encompasses the [REDACTED]. These projects utilize the highly complex and uniquely critical ABAQUS (SIMULIA) software for M&S tasks that include strength of design analysis and activities for prototype developments, which are briefed at the [REDACTED] level. Utilizing the ABAQUS (SIMULIA) software for hybrid work has boosted engineering capabilities, resulting in successful project outcomes. ABAQUS (SIMULIA) software is also used for several current root cause investigations [REDACTED], development of the [REDACTED] weapon system designs, and the [REDACTED] Program.

For over 20 years, DS Government Solutions alone has been responsible for all of DEVCOM-AC's ABAQUS (SIMULIA) software support and is the only source that can satisfy the Government's current requirement in the timeframe necessary to meet the Army's analytical requirements for mission needs. This sole source position is predicated on DS Government Solutions being the original manufacturer, developer and distributor of ABAQUS (SIMULIA) software and software support.

DS Government Solutions is the only provider that has access to source codes and patent rights for ABAQUS (SIMULIA) software. DS Government Solutions alone has the required knowledge and familiarization with the existing Abaqus (SIMULIA) software as well as the background and knowledge of Army requirements and projects utilizing ABAQUS (SIMULIA) software. Not only has DS Government Solutions provided the ABAQUS (SIMULIA) software support described above, but they also have the unique capability to provide any and all future ABAQUS (SIMULIA) software requirements and support through License Renewals.

Competition for this requirement is not feasible and would result in a substantial duplication of costs that is not expected to be recovered through competition. All other potential software developers would have to develop software products that can duplicate the functions that ABAQUS currently provides. ABAQUS (SIMULIA) software is the only software that provides our users with the ability to execute models for highly complex [REDACTED] through a variety of [REDACTED] conditions. ABAQUS (SIMULIA)

(Source Selection Information - See FAR 2.101 and 3.104-4)

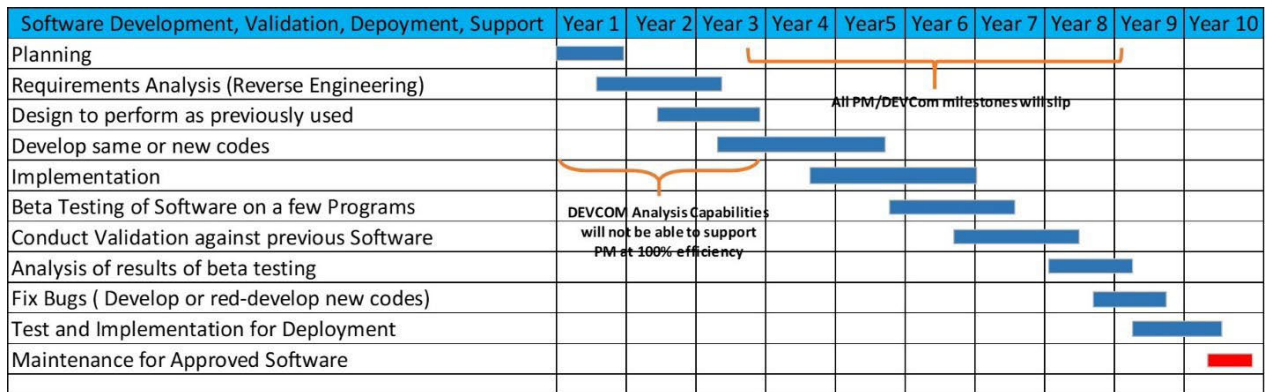
software uses mathematics that are robust and physically accurate. This software suite offers a wide array of [REDACTED] cases and coupling methods, making it a versatile tool for finite element analysis and constitutive models. Additionally, the graphical user interface ABAQUS provides via their Complete Abaqus Environment (CAE) allows for new users to quickly establish proficiency. The estimate for duplication of cost is [REDACTED] which cannot be recovered through competition. This duplication cost is a conservative estimate for the 40+ users across the Armaments Center with expertise in using the ABAQUS (SIMULIA) software suite. Re-establishing parity with current capabilities and capacities would require an investment of at least [REDACTED]. This is primarily driven by a steep one-year learning curve that would cause a significant loss in workforce throughput. Furthermore, customer funded initiatives would not pay for the cost of this capability reconstitution, nor will they absorb the programmatic throughput losses for that minimum of a year. [REDACTED]

[REDACTED]					
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]					[REDACTED]

Without access to ABAQUS (SIMULIA), researchers at DEVCOM-AC would need to develop and maintain custom software tailored to specific projects and mission of interest. DEVCOM-AC would be forced to engage in developmental software analysis techniques which would need to be validated in order to support the programs that are currently being supported utilizing ABAQUS. Competition for this requirement is not feasible and would result in unacceptable program delays of [REDACTED]. The length of time it takes users to learn how to use ABAQUS (SIMULIA) software is attributed to the software's complex functionality. The software executes models for highly complex [REDACTED] through a variety of [REDACTED] conditions. Therefore, users must learn the various [REDACTED] conditions and constitutive models that the

(Source Selection Information - See FAR 2.101 and 3.104-4)

software is capable of processing. All other potential software developers would have to develop software products that can duplicate the functions that ABAQUS currently provides. This delay would create a significant capability gap for the Army's [REDACTED] priority, impacting [REDACTED] readiness. The following chart shows the schedule impact of not awarding to DS Government Solutions.



6. Efforts to Obtain Competition: The Contracting Officer shall publish the notices required by FAR 5.201 and any bids or proposals received shall be considered.

- Effective Competition. Effective competition is not feasible for this effort because DS Government Solutions is the sole source capable of supplying the necessary software.
- Subcontracting Competition. Not applicable. No subcontracting opportunities are available since the software is solely developed, distributed, and supported by DS Government Solutions.

7. Actions to Increase Competition: No actions can be taken to increase competition due to the manufacturer, DS Government Solutions, being the sole developer, and distributor of ABAQUS (SIMULIA) software support, and the only provider that has access to the source codes and patent rights for ABAQUS (SIMULIA) software. The Government will continue to conduct market research on an annual basis in an effort to find viable competition and in accordance with FAR 5.201(b), future requirements will be synopsized. If other authorized ABAQUS sellers are found, or an alternate software application has emerged with the capability to meet the Government's finite analysis software needs, competition will be provided to the greatest extent possible.

8. Market Research: From October 1, 2025 to December 30, 2025 the technical community conducted market research by attending M&S Symposia, evaluating alternative government and commercial codes, and contacting other Government Agencies to assess their tools/workflows. The research concluded that DS Government Solutions is the sole manufacturer, developer, and provider of ABAQUS (SIMULIA) software support, and is the only provider that has access to the source codes and patent rights for ABAQUS (SIMULIA) software. There is currently no other software that can meet the requirements of the DEVCOM-AC M&S Community.

(Source Selection Information - See FAR 2.101 and 3.104-4)

9. **Interested Sources:** To date, no other sources have expressed interest in the acquisition.

10. **Other Facts:**

a. Procurement history.

Contract Number: W15QKN25PA024; award date: 18 March 2025; Value: \$1,589,951.68.

- I. Competitive Status: Sole Source.
- II. Authority previously cited: Simplified Procedures for Certain Commercial Items, 41 U.S.C. 1901 as implemented by FAR Subpart 13.501(a)(1)(ii), sole source (including brand name).
- III. Previous J&A Paragraph 7, Actions to Increase Competition: No actions can be taken to increase competition due to the manufacturer, DS Government Solutions, being the sole developer, and distributor of ABAQUS (SIMULIA) software support, and the only provider that has access to the source codes and patent rights for ABAQUS (SIMULIA) software. The Government will continue to conduct market research on an annual basis in an effort to find viable competition and in accordance with FAR 5.201(b), future requirements will be synopsized. If other authorized ABAQUS (SIMULIA) sellers are found, or an alternate software application has emerged with the capability to meet the Government's finite analysis software needs, competition will be provided to the greatest extent possible.
- IV. No prior contracts for this requirement have been accomplished using Full and Open Competition.
- V. There are no unusual patterns or urgent buys throughout the history of this Program.
- VI. The circumstances justifying the previous procurement are similar to this justification. Since DS Government Solutions is the original manufacturer and does not have any authorized distributor or reseller, there have not been any significant changes to the procurement.

Contract Number: W15QKN-19-D-0021; Award Date: 21 December 2018. Associated Delivery Orders (DO) are as follows:

<u>DO</u>	<u>Date of Award</u>	<u>Value</u>
W15QKN-19-F-0176	2018DEC21	\$918,004.80
W15QKN-19-F-0292	2019FEB01	\$1,133,149.20
W15QKN-20-F-0017	2019DEC20	\$1,196,520.76
W15QKN-20-F-0502	2020OCT01	\$ 38,473.60
W15QKN-21-F-0033	2020NOV30	\$1,196,520.76
W15QKN-21-F-0428	2021SEP09	\$ 39,243.09

(Source Selection Information - See FAR 2.101 and 3.104-4)

W15QKN-21-F-0087	2021DEC15	\$1,269,391.65
W15QKN-23-F-0090	2022NOV30	\$ 40,816.65
W15QKN-23-F-0112	2022DEC12	\$1,269,391.65
W15QKN-24-F-0046	2023DEC08	\$1,390,029.74

- I. Competitive Status: Sole Source
- II. Authority previously cited: Simplified Procedures for Certain Commercial Items, 41 U.S.C. 1901 as implemented by FAR Subpart 13.5, Exclusive licensing agreements.
- III. Previous J&A Paragraph 7, Procurement's Actions to Increase Competition: No actions could be taken to increase competition. DS Government Solutions was responsible for all of DEVCOM-AC's ABAQUS (SIMULIA) software support because DS Government Solutions is the original manufacturer, developer and distributor of ABAQUS (SIMULIA) software and software support. DS Government Solutions does not have any authorized distributors or resellers. The Government conducted market research prior to each DO award and found no change in the market condition.
- IV. No prior contracts for this requirement have been accomplished using Full and Open Competition.
- V. There are no unusual patterns or urgent buys throughout the history of this Program.
- VI. The circumstances justifying the previous procurement are similar to this justification. Since DS Government Solution is the original manufacturer and does not have any authorized distributor or reseller, there have not been any significant changes to the procurement.

Other facts: There are no other pertinent facts remaining.

(Source Selection Information - See FAR 2.101 and 3.104-4)

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

[Redacted]

Date:

Title:

[Redacted]

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

[Redacted]

[Redacted]

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. A price analysis will be performed using the Independent Government Estimate (IGE). Certified Cost and Pricing data are not required as this is a commercial service.

[Redacted]

[Redacted]

[Redacted]

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[Redacted]

Date:

[Redacted]

[Redacted]

(Source Selection Information - See FAR 2.101 and 3.104-4)

Approval

Based on the foregoing justification, I hereby approve the procurement of ABAQUS (SIMULIA) Software updates, support, and maintenance for [REDACTED] on an other than full and open competition basis pursuant to the authority of 41 U.S.C. 1901 as implemented by FAR 13.501, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

[REDACTED]

[REDACTED] [REDACTED] _____

[REDACTED]
[REDACTED]

(Source Selection Information - See FAR 2.101 and 3.104-4)